

CASSATION & ECHR · 7 MAR 2001

Cassation — defence to application

TYPE	COURT	DATE	PARTIES
Appeal / remedy	The Court of Cassation	7 Mar 2001	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

Observations in defence — Court of Cassation · 7 March 2001

Overview: observations in defence submitted by SCP A. Bouzidi, counsel at the Conseil d'État and the Court of Cassation (France's highest court), on behalf of Bernard Collorafi and the companies SEBOL, B et O and Les Pins, against McDonald's France. They respond to McDonald's application for the removal from the list of appeal to the Court of Cassation no. X-00-14447, on the basis of article 1009-1 of the NCPC.

Key points

The document recalls that the judgment of the Paris Court of Appeal of 8 March 2000 held the termination of the agreements by McDonald's to be wrongful and found it liable, ordering reciprocal payments. McDonald's sought removal from the list, arguing that the appellants still owed 2,837,763.84 F. The respondents dispute this balance: after deducting the security deposits (220,000 F) and rents wrongly collected (301,500 F), they put it at 2,238,287.57 F and state that McDonald's has already received nearly 75% of its claim. They describe a situation of insolvency: companies inactive since 10 June 1998, a judicial mortgage on Mr Collorafi's house up to 4,150,000 F, a third-party holder notice from the Treasury, forfeiture of the term of a bank loan. They ask for the application to be dismissed, as its consequences would be manifestly excessive.

Significance

This document illustrates the cassation phase and what is at stake in the enforcement of the appeal judgment: the survival of the appeal to the Court of Cassation depends on the appellants' disputed ability to pay the sums awarded.

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Source: bernardcollorafi.org/en/documents/cassation-collorafi-defence-removal-from-list-appeal-mcdonalds-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.